BY ORDER OF THE COMMANDER
MACDILL AIR FORCE BASE

MACDILL AIR FORCE BASE
INSTRUCTION 51-900

21 APRIL 2016

Law

JUVENILE CORRECTIONS PROGRAM (JCP)

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

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This instruction implements Air Force Policy Directive (AFPD) 51-9, *Civil Law for Individuals*, and provides the framework for the disposition of juvenile misconduct cases and the treatment of juvenile offenders. This instruction applies to all residents of MacDill Air Force Base (AFB) as well as military dependents who reside off base while on MacDill AFB. Ensure that all records created as a result of processes prescribed in this publication are maintained in accordance with Air Force Manual (AFMAN) 36-363, *Management of Records,* and disposed of in accordance with the Air Force Records Disposition Schedule (RDS) located at **https://www.my.af.mil/afrims/afrims/afrims/rims.cfm.** Refer recommended changes and questions about this publication to the Office of Primary Responsibility (OPR) using the Air Force (AF) Form 847, *Recommendation for Change of Publication*; route AF Forms 847 from the field through the appropriate functional chain of command. This publication may not be supplemented or further implemented/extended.

SUMMARY OF CHANGES

This document has been substantially revised and must be completely reviewed. Major changes include definitions previously found in paragraph 1 were moved to Attachment 1; See MACDILLAFBI 31-101, *Installation Security/Physical Security (FOUO)* was removed from paragraph 3.1 and under *References.*

1. Purpose. Juvenile misconduct presents a threat to the maintenance of good order and discipline and protection of property at MacDill AFB. The goal of the MacDill AFB Juvenile Corrections Program (JCP) is to rehabilitate offenders. The outcome of the hearing should be designed to prevent further misconduct and instill respect for the law. The JCP is carried out under the Installation Commander's authority to maintain good order and discipline. The JCP provides an alternative to more formal action. The JCP establishes a means for the juvenile to voluntarily participate in recommended programs or complete community service to demonstrate their continued presence on the installation will not result in further misconduct.

2. Responsibilities.

2.1. Sponsors. A Sponsor is any individual authorized to allow access of another individual on MacDill AFB such as a Department of Defense (DoD) Identification Card/Common Access Card holder. Sponsors include hosts of guests from off-base parents and/or guardians who have responsibility for the conduct of juveniles in their charge. Sponsors must ensure juveniles in their charge comply with all federal and state laws and regulations as well as MacDill AFB directives.

2.2. Installation Commander. The 6 AMW Commander (6 AMW/CC) is the installation commander. The Installation Commander is responsible for good order and discipline on MacDill AFB. The Installation Commander has broad authority to control activities on his/her installation, including the authority to remove or exclude any person whose presence on the installation is unauthorized or whose presence disrupts good order and discipline pursuant to a debarment action. Responsibility for responding to breaches of order by juvenile offenders has been delegated to the 6th Mission Support Group (6 MSG). The installation commander retains the authority to order another hearing on any matter and, after notice to the parents or guardians, to change a disposition of the Juvenile Corrections Hearing.

2.3. JCP Hearing Officer. The 6 MSG Deputy Commander (6 MSG/CD) is the primary JCP Hearing Officer for all cases of juvenile misconduct. The 6 MSG Commander (6 MSG/CC) can also act as a JCP Hearing Officer as needed. In those cases where base debarment is recommended, the Hearing Officer must make a debarment recommendation to the Installation Commander who is the debarment approving official. If debarment is recommended by the Hearing Officer, the 6th Security Forces Squadron (6 SFS) will prepare the debarment recommendation package for the Hearing Officer's signature and the Installation Commander's review and approval.

2.4. JCP Manager/Administrator. The JCP Administrator, a paralegal assigned to the 6th Air Mobility Wing, Office of the Staff Judge Advocate's office (6 AMW/JA), receives and reviews Reports of Investigation and refers possible juvenile cases to the JCP Manager (6 AMW/JA Assistant Staff Judge Advocate) for approval. The JCP Manager approves which cases will be referred to a Juvenile Corrections Hearing. Prior to referring any case to a Hearing, the JCP Manager shall ensure the alleged misconduct is substantiated and is worthy of a Hearing. The JCP Manager will take into consideration the seriousness of the misconduct, previous misconduct, the likelihood that the Hearing will have a positive effect upon the juvenile, mitigating circumstances, the availability of the juvenile, and other appropriate factors present on a case by case basis. The JCP Administrator under the supervision of the JCP Manager coordinates all Hearing activities including scheduling

hearings (**Attachment 2**). Within five days of the scheduled hearing, the administrator will prepare a written notice and ensure a signed copy of the notice is delivered to the parent or guardian of a juvenile who has been referred to a Hearing. The notice shall be hand-delivered or sent to the last known address of the alleged offender. The notice shall include the date, time and place of the hearing, the alleged misconduct, and a statement that attendance at the hearing is a mandatory formation for military personnel. The administrator will deliver a copy of the case file to the Hearing Officer for review at least three days prior to the scheduled hearing. The Administrator serves as a liaison between the respondents and members of the command. The Administrator shall prepare appropriate documents/documentation reflecting the Hearing's results, and will be responsible for ensuring documentation for community service adjudged by the Hearing Officer is provided by the offender. Within five duty days after the Hearing, the administrator shall prepare documents consistent with the Hearing Officer's decisions and recommendations and forward the documents to the Hearing Officer for approval and signature. Upon approval, the Administrator may release the approved actions to the juvenile's parent or guardian. Failure to comply with the five duty day time period shall not in any way affect the validity of the Hearing's results.

3. Juvenile Corrections Hearing Scheduling. Hearings will take place as needed to review cases of juvenile misconduct which occur on MacDill AFB.

4. Juvenile Corrections Hearing Procedures.

4.1. Informal Administrative Hearings. Proceedings before the Hearing Officer shall be informal hearings that are noncriminal in nature. The hearing is an opportunity for the Hearing Officer to discuss the misconduct with the alleged offender and his or her sponsor, and for the alleged offender to explain his or her misconduct. Accordingly, the rules of evidence shall not apply in any form to hearing proceedings and there is no right to have an attorney represent the juvenile or sponsor.

4.2. Record of Proceedings. Recommendations for action by the Hearing Officer shall not constitute a criminal record. All proceedings before the Hearing Officer are closed and information derived from the hearing is not released outside the Air Force.

4.3. Right to be Heard. Any juvenile appearing before the Hearing Officer has a right to present matters in his or her defense or matters in mitigation. Any parent or guardian appearing before the Hearing Officer has a right to address the Hearing Officer and/or speak on behalf of the child.

4.4. Parties Present. The Hearing Officer has the authority to deny a request for other parties to be present. Attorneys are not permitted to appear on behalf of the juvenile or his or her family regardless of parental consent. Attendance during a hearing shall be limited to the following persons:

4.4.1. The Hearing Officer.

4.4.2. The military sponsor of the juvenile.

4.4.3. The parent(s) or guardian(s) of the juvenile.

4.4.4. The juvenile.

4.4.5. The JCP Manager and JCP Administrator.

4.4.6. Other persons may be permitted access to the hearing room while the hearing is in session with the express permission of the juvenile's parent(s) or guardian(s) and approval of the Hearing Officer.

4.5. Dress. Proper dress is required at the hearing.

4.5.1. All military members will wear the Uniform of the Day.

4.5.2. Civilians will be dressed in the appropriate attire.

4.6. Deliberation. After all parties have had an opportunity to present information, the Hearing Officer shall recess the hearing for deliberations. The Hearing Officer shall then decide whether the juvenile was involved in the alleged misconduct.

4.6.1. Finding of No Involvement. If the Hearing Officer determines that the juvenile was not involved in the alleged misconduct, the Hearing Officer will notify the juvenile through his or her parents or legal guardian by providing a letter indicating this finding.

4.6.2. Finding of Involvement. If the Hearing Officer finds the juvenile was involved in the alleged misconduct, the Hearing Officer may take the following action:

4.6.2.1. Take no action.

4.6.2.2. Verbally reprimand the juvenile before the hearing adjourns.

4.6.2.3. Recommend to the juvenile's parents that the juvenile seek counseling at the 6th Medical Group, Mental Health Services, the Chaplain, or other appropriate agency for counseling.

4.6.2.4. Recommend the family seek assistance at the Family Advocacy Office.

4.6.2.5. Recommend to the juvenile's parents that the juvenile attend and participate in an Alcohol and/or Drug Abuse Program.

4.6.2.6. Give a written reprimand to the juvenile.

4.6.2.7. Recommend the juvenile write an article for publication in the MacDill Thunderbolt.

4.6.2.8. If the juvenile resides in base housing with his/her parents, a special curfew can be imposed.

4.6.2.9. Recommend community service hours to be performed by the juvenile, and a time period for completion of the community service. The juvenile and/or his or her sponsor will be responsible for providing documentation that the community service hours have been accomplished to the JCP Administrator (6 AMW/JA).

4.6.2.10. Recommend the installation commander place certain base areas or facilities off-limits to the juvenile.

4.6.2.11. Recommend to the Installation Commander that the juvenile be debarred from MacDill AFB.

4.6.2.12. Any combination of the above actions.

4.6.3. Recommendations made to the juvenile and/or his or her sponsor may be forwarded to the Installation Commander.

4.6.4. If the juvenile fails to complete one of the recommendations, the Installation Commander at his or her discretion my debar the juvenile.

5. JCP Administration. 6 AMW/JA shall appoint an Assistant Staff Judge Advocate and paralegal as the JCP Manager and Administrator.

6. Appeals. There is no authority to appeal the decision of the JCP Hearing Officer. All decisions are final.

7. Command Action. The command action taken will be documented on the appropriate incident report and filed as prescribed by regulations governing the use of AF Form 3545, *Incident Report.*

DANIEL H. TULLEY, Colonel, USAF
Commander

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

AFMAN 33-363, *Management of Records*, 1 March 2008

AFPD 51-9, *Civil Law for Individuals*, 5 November 1993

Prescribed Forms

None

Forms Adopted

AF Form 847, *Recommendation for Change of Publication*

AF Form 3545, *Incident Report.*

Abbreviations and Acronyms

6 AMW—6th Air Mobility Wing

6 MSG—6th Mission Support Group

6 SFS—6th Security Forces Squadron

AF—Air Force

AFB—Air Force Base

AFI—Air Force Instruction

AFMAN—Air Force Manual

AFPD—Air Force Policy Directive

CC—Commander

CD—Deputy Commander

DD/DoD—Department of Defense

JA—Office of the Staff Judge Advocate

JCP—Juvenile Corrections Program

MACDILLAFBI—MacDill AFB Instruction

OPR—Office of Primary Responsibility

RDS—Records Disposition Schedule

Terms

Jurisdiction—MacDill AFB, a place within the special and maritime jurisdiction of the United States.

Juvenile—Any unmarried person under the age of 18 years who is not a member of the Armed Services.

Juvenile Corrections Hearing—The forum for reviewing cases of juvenile misconduct.

Juvenile Corrections Program (JCP) Administrator—A paralegal assigned to the 6th Air Mobility Wing, Office of the Staff Judge Advocate (6 AMW/JA) responsible for the administration processes of the JCP.

Juvenile Corrections Program (JCP) Manager—An Assistant Staff Judge Advocate assigned to the 6th Air Mobility Wing, Office of the Staff Judge Advocate (6 AMW/JA), responsible for managing the JCP.

Misconduct—Any violation of a statute, regulation, or instruction or conduct disruptive to good order and discipline.

Attachment 2

JUVENILE CORRECTIONS HEARING NOTICE LETTER

Figure A2.1. Juvenile Corrections Hearing Notice Letter.

DEPARTMENT OF THE AIR FORCE
6TH AIR MOBILITY WING (AMC)
MACDILL AIR FORCE BASE FLORIDA

MEMORANDUM FOR (NAME OF SPONSOR)
(Address)

FROM: 6 AMW/JA
8208 Hangar Loop Drive
MacDill AFB FL 33621

SUBJECT: Appearance at Juvenile Corrections Hearing

1. A Juvenile Corrections Hearing (JCH) reviews and adjudicates juvenile misconduct cases at MacDill Air Force Base pursuant to MACDILLAFBI 51-900. A JCH will take place on (INSERT DATE) at (TIME) to evaluate the conduct of juveniles on base, including your (SON OR DAUGHTER) who was questioned for his or her involvement in (STATE ALLEGED MISCONDUCT).

2. The JCH Hearing Officer will consider evidence to determine the extent of your son's or daughter's involvement in the alleged misconduct. You and your child are encouraged to appear at the hearing to provide any evidence you would like the Hearing Officer to consider. Such information may include written statements or other documentary evidence detailing your child's involvement in the alleged misconduct, and/or any information you believe mitigates your child's involvement in the misconduct. You or your child may also make statements for the Hearing Officer's consideration. At the conclusion of the hearing, the Hearing Officer will determine your child's involvement and determine appropriate remedies for any sustained misconduct. Remedies may include no punishment, performing community service, or other appropriate responses, and can include debarment from MacDill Air Force Base.

3. You will be given an opportunity to present information during the JCH. Proper dress and demeanor are required at the hearing. Military members are required to wear the uniform of the day and civilians will wear appropriate attire. Failure to appear for the JCH will not prevent the hearing from proceeding or prevent the Hearing Officer from taking action on your child's alleged misconduct. The hearing will be held at the MacDill Legal Center (6th Air Mobility Wing Headquarters building).

4. If you have any questions regarding the JCH process, please contact Capt (NAME) or (S or T)Sgt (NAME) at (813) 828-4421.

NAME, Capt, USAF
Juvenile Corrections Program Manager

UNRIVALED GLOBAL REACH FOR AMERICA…ALWAYS!